

THE SAVINGS BANK MUTUAL LIFE INSURANCE COMPANY OF
MASSACHUSETTS ("SBLI")
1 Linscott Road
Woburn, MA 01801

**MLM DIRECT TO PRODUCER
GENERAL AGENCY AGREEMENT ("Agreement")**

THIS AGREEMENT, is effective the ____ day of _____, 2026 ("Effective Date") by and between SBLI, a Massachusetts corporation, with a principal place of business at 1 Linscott Road in Woburn, Massachusetts, ("SBLI", the "Company", "we", "our" and "us") and

a General Agency ("GA", "you" or "your") with a principal place of business at

SBLI and GA may be referred to herein individually as a "Party" and collectively as "Parties."

Now therefore, in consideration of the respective covenants, agreements and undertakings contained herein, and for good and other valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

- 1) **Product(s):** GA intends to sell SBLI's Product(s) ("Products") to insurable consumers through GA's producers, duly licensed and appointed by SBLI ("GA Producer(s)") to sell Products, in accordance with the terms and conditions of this Agreement and related documents.
- 2) **Downline Producers.** GA shall recommend licensed Producers for SBLI's approval and appointment by SBLI to sell SBLI Products to insurable consumers without disrupting SBLI's existing Product distribution systems.
- 3) **Producer Documents and Agreements.** Upon appointment by SBLI, GA Producers shall be subject to SBLI Producer approval, appointment and contracting requirements including completion, execution and review of all SBLI Producer application(s), authorization(s), reports, agreement(s) and related documentation ("Producer Documents"). SBLI Producer Agreement(s) ("Producer Agreement") may authorize approved Producers to (i) solicit applications for SBLI Products and assist insurable consumers to apply for SBLI Products subject to the terms and conditions of the Products and any pertinent laws and regulations.

No SBLI Producer agreement shall be effective unless the GA Producer: a) is duly licensed to sell SBLI Products; b) is appointed with SBLI; c) has completed and submitted all required Producer Documents and d) has fully executed a SBLI Producer Agreement.

4) **GA and GA Producer Activities.**

All GA and GA Producer activities hereunder shall be in accordance with SBLI's rules and requirements governing said activities including the following:

- a) Product applications shall be submitted to SBLI on approved application forms.
- b) Products, applications and supporting documents are SBLI's property and shall be promptly delivered to SBLI upon execution subject to GA's business record retention processes and applicable laws and regulations.
- c) Product application decisions shall be subject to SBLI's sole discretion.
- d) Product premium payments must be payable to SBLI. No premium payments shall be endorsed by GA, GA's Producers, GA's employees or affiliates.
- e) GA and/or Producer shall promptly submit all Product premium payments to SBLI. GA may not offset any other amounts owed to GA against any SBLI Product premium payments.

GA shall:

- f) Promptly forward to SBLI all pertinent information in GA's possession concerning Product applicants regardless of whether such information bears favorably or unfavorably on such applicant unless GA is legally prohibited from doing so.
- g) Pay all expenses incurred by GA in the performance of this Agreement.
- h) Comply with all applicable insurance laws, regulations, licensing & training requirements and provide SBLI with all documentation of compliance upon request.
- i) Maintain complete and accurate business records of GA and Producer transactions in compliance with applicable laws and regulations.
- j) Comply with SBLI's reasonable requests, rules and requirements relating to Products.
- k) Submit proposed SBLI related advertising material to SBLI for review and approval, including Product related brochures, letters, emails, texts, radio, or television advertising, print media advertisements, flyers, websites, web pages, social media sites, training manuals, illustrations and referral programs which relate or refer to SBLI.
- l) Obtain SBLI's prior written approval before using advertising materials which relate or refer to SBLI or SBLI Products.
- m) Promptly discontinue use of any advertising materials when such materials are no longer valid, and in any event not later than one year from the date of SBLI's approval.
- n) Refrain from using SBLI's name, logos, or trademarks in any way without obtaining SBLI's prior written consent which shall not be unreasonably withheld.
- o) Refrain from knowingly participating in any systematic surrender or replacement of SBLI Products and use reasonable efforts to keep all SBLI Products in full force and effect with SBLI.
- p) Use reasonable efforts to encourage Producers to promote and solicit SBLI's Products in accordance with the terms set forth herein.
- q) Use reasonable efforts to (i) communicate with GA Producers regarding SBLI's Products, procedures and guidelines as reasonably required to promote efficient

submission of Product applications and Product related transactions; and (ii) exercise general management of GA Producers to ensure consistent communication and business transaction hereunder.

- r) Promptly notify SBLI of any known consumer complaint, regulatory investigation, and/or disciplinary action including: requests for information, notice of suspension or termination, judicial proceeding and other regulatory actions involving GA or any GA Producers which may impact the marketing or sale of SBLI's Policies.
- s) Cooperate with SBLI and provide SBLI with access to GA personnel and GA records in connection with any consumer complaint, regulatory or judicial action.
- t) Comply with all state and federal laws, orders, rules, and regulations, including federal and state laws relating to: Telephone Consumer Protection Act (TCPA), insurance sales, privacy, unfair business practices, rebating, anti-money laundering, and fraud.
- u) Allow SBLI's representatives, auditors, and/or accountants to conduct, upon reasonable prior notice, an audit of GA's books, records, files, data, or information stored in any electronic medium as SBLI deems necessary with respect to the GA's business transacted hereunder.
- v) With respect to any software or electronic applications supplied by SBLI to GA, ("Software"), GA Shall:
 - i) Update such Software in a timely manner.
 - ii) Not make any unauthorized modifications to the Software.
 - iii) Not copy Software.
 - iv) Not transfer, rent, sell, share or Software to anyone without SBLI's prior written consent.

5) **Independent Contractor Relationship.** The relationship between SBLI and GA shall be principal and independent contractor. Not employer and employee. Nothing contained herein shall be construed to create an employer and employee relationship between SBLI and GA or GA Producers. GA shall freely exercise independent judgement as to the time, method, place, and manner of performing the services authorized hereunder, and GA shall conform said performance to applicable state and federal laws and regulations. SBLI may prescribe business directives and rules to GA consistent with the SBLI/GA independent contractor relationship. Any SBLI materials SBLI provided to GA shall be to assist GA's performance of services hereunder and shall not infringe on GA's independence.

6) **Limitation of Authority.** GA shall not:

- a) Represent itself as SBLI or SBLI's employee, partner, joint venturer, or associate.
- b) Represent itself as a SBLI GA or SBLI Producer other than as expressly provided herein.
- c) Alter, modify, waive, or change any of the terms, rates, or conditions of any SBLI Product or Product related form, advertisements or statements, or answers on any Product application or discharge, execute or endorse any contract on behalf of SBLI.
- d) Collect any premium payments on behalf of SBLI, except initial premium payments or premium payments made upon execution of SBLI conditional receipt agreements.
- e) Pay any premium directly or indirectly to SBLI on behalf of a SBLI applicant or

insured.

- f) Retain any unearned commission, compensation, or override payments by SBLI, to GA or GA's Producers. GA shall promptly return any unearned commission, compensation, or override payments to SBLI.
- g) Attempt to bind SBLI on any application or Product by any promise or agreement.
- h) Guarantee any premiums, interest rates, or dividends or any provision, or offer to pay any person or entity directly or indirectly any rebate of premiums or any other inducement not specifically authorized by SBLI.
- i) Misrepresent anything to cause any SBLI policyholder or any other insurance consumer to lapse, terminate, forfeit, or surrender insurance coverage with SBLI or any carrier.
- j) Accept or endorse notes or checks payable to SBLI or otherwise incur any debts, expense, or liability for or against SBLI.
- k) Waive or extend the time for premium payments or other payments payable to SBLI.
- l) Violate any state or federal laws, this Agreement, the rules, orders or regulations of any insurance regulatory entity, court and/or governmental authorities having jurisdiction of all subject matters referenced within this Agreement, or any SBLI related directives, instructions, rules, bulletins, manuals/training materials, and guidelines.

- 7) **Suitability.** GA shall comply with all applicable state and federal laws and regulations regarding suitability for Products, and with any SBLI documentation and review requirements created in accordance with suitability laws and regulations. If GA has actual knowledge that any Product is not suitable then GA shall promptly notify SBLI regarding the same. GA acknowledges that applications for Products are subject to SBLI's review for suitability and that SBLI may request that GA and/or GA Producers provide additional information to SBLI in order to verify suitability.

8) **Compensation.**

- a) Compensation Schedule. Compensation (e.g., overrides, bonuses, or commissions) ("Compensation") shall be computed based on the operative Compensation Schedule attached hereto and/or incorporated herein ("Compensation Schedule"). No Compensation is payable for Products sold in violation of applicable laws or regulations.

Subject to reasonable prior notice to GA and/or GA Producer(s), SBLI may revise the Compensation Schedule(s). Such revisions shall not apply retroactively to Product applications that SBLI received prior to the effective date of any revised Compensation Schedule. Any revisions to or substitutions of the Compensation Schedule or Compensation shall not constitute an amendment to this Agreement.

- b) Compensation Payments. SBLI shall pay Compensation to GA or GA Producers for SBLI Products sold by GA or GA Producers in accordance with the operative Compensation Schedule for SBLI Products based upon applications submitted to SBLI by GA or GA Producers, subject to the following conditions:
 - (i) All terms and conditions specified in the Product application form are satisfied.

- (ii) SBLI approved a submitted Product application.
- (iii) The Product initial premium is paid to SBLI.
- (iv) The Product is placed in force by SBLI.
- (v) The Product is delivered and accepted by the consumer.
- (vi) Any required supplementary receipts or documentation are signed by the Product owner and received by SBLI.
- (vii) The Product remains in force prior to payment of Compensation.

Payment to GA Producer. SBLI will pay GA Producer Compensation payments directly to GA Producer(s).

Tax Reporting. SBLI will issue Federal Form 1099-NEC information returns for each calendar year as warranted. GA shall have full responsibility for all self-employment, corporate and all other applicable federal and state taxes incurred by GA.

- c) Unearned Compensation. SBLI may pay advanced unearned Compensation payments to GA and/or GA's Producers ("Unearned Compensation") based upon the express condition that the Unearned Compensation will become fully earned Compensation in accordance with this Agreement and the Compensation Schedule. Therefore, all Unearned Compensation payments shall be a loan from SBLI to GA and/or GA's Producers until such Unearned Compensation payments become fully earned Compensation pursuant to this Agreement and the Compensation Schedule.

GA shall be responsible for repayment to SBLI for any Unearned Compensation payments made by SBLI to GA and/or GA's Producers as if such Unearned Compensation had been paid directly to GA.

Reversal and Clawback Amount. If SBLI has paid Unearned Compensation pertaining to a Product that was not accepted, was cancelled, lapsed, rescinded, has premium refunded or is otherwise reversed (a "Reversal"), then SBLI shall be entitled to repayment of that amount Unearned Compensation (the "Clawback Amount") from GA and/or GA's Producers.

Recovery Period. For a period of at least ninety (90) days from the Reversal (the "Recovery Period") SBLI shall attempt to recover the Clawback Amount from the writing Producer (and upline Producer(s) who received Compensation from the Reversal transaction).

Compensation Deductions. Clawback Amounts not recovered by SBLI will be deducted from future Compensation that would otherwise be payable to the applicable writing Producer (and their respective upline Producer(s) including GA who would otherwise be eligible for Compensation).

GA Debt. Any unrecovered portion of Clawback Amount not received by SBLI during the Recovery Period shall be GA debt to SBLI ("GA Debt") and shall be

subject to the applicable provisions of this Agreement.

- d) Improper Compensation. Compensation that SBLI has erroneously paid to GA and/or GA's Producer ("Improper Compensation") shall be repaid to SBLI by GA and/or GA's Producers as the recipient of Improper Compensation. Circumstances involving Improper Compensation include without limitation:
- i) Product issued by SBLI based upon misrepresentation and GA and/or GA's Producer knew or should have been aware of said misrepresentation.
 - ii) SBLI overpayment of Compensation to GA and/or GA's Producer.
 - iii) SBLI erroneous payment of Compensation to GA and/or GA's Producer (e.g., payment made to incorrect GA and/or GA's incorrect GA Producer).

Any Improper Compensation payments to GA and/or GA's Producers shall be refunded to SBLI by the recipient of the Improper Compensation within thirty (30) days of discovery of the Improper Compensation by either SBLI or GA's Producer.

GA Debt. GA and/or GA Producer's failure to repay Improper Compensation payments shall constitute GA Debt.

- 9) **GA Debt**. GA shall be responsible for all GA Debt. The Parties agree that SBLI's business records shall be the primary evidence of GA Debt.

SBLI may provide Notice to GA and require GA repayment of GA Debt. Upon receipt of such Notice, GA shall promptly contact SBLI and make repayment arrangements with SBLI including Chargebacks and/or direct repayment to SBLI for GA Debt.

Lien. SBLI shall have a prior chargeback lien in the full amount of the GA Debt ("Lien") against all future compensation otherwise payable to GA and/or GA's Producers.

Chargeback. SBLI may upon written notice to GA elect to offset the amount of the GA Debt/Lien against GA's and/or GA's Producers' current and future Compensation otherwise due or payable to GA and/or GA's Producers ("Chargeback(s)"). The Chargeback(s) may continue until the GA Debt/Lien has been satisfied.

Interest. SBLI reserves the right to charge interest on any GA Debt upon 30 days advance notice. Interest shall accrue from the date notice is mailed on the unpaid amount due to SBLI at the Prime Rate (as published in the Wall Street Journal), plus 2%.

Collection Actions. SBLI may commence collection procedures or litigation to collect GA Debt/Lien from GA and/or GA's Producers ("Collection Actions").GA

shall be liable to SBLI for all costs associated with said Collection Actions including but not limited to, attorneys' fees, collection expenses, litigation expenses or other costs of collection, including court costs.

10) **Term and Termination.**

- a) Term. The term of this Agreement shall be from the Effective Date until this Agreement is terminated pursuant to terms of this Section 10.
- b) Termination. Termination of this Agreement may occur as follows: for cause and without cause as set forth herein.
- c) GA Debt. In the event of any termination, any existing GA Debt to SBLI shall be immediately payable by GA to SBLI.
- d) Termination For Cause. SBLI may terminate this Agreement for cause. The following circumstances will result in automatic termination of this Agreement without notice (unless required by law) and GA will forfeit all rights to any present and future Compensation which would otherwise be payable to GA under this Agreement:
 - i) GA commits a fraudulent act in the performance of any duties pursuant to this Agreement.
 - ii) GA withholds or misappropriates any money from SBLI or SBLI Policyowners.
 - iii) The revocation, termination, or non-renewal of GA's license to sell the Products.
 - iv) The filing of any petition or application for any relief filed by or against the GA under the bankruptcy laws of the United States or under any insolvency, reorganization, receivership, readjustment of debt, dissolution, or liquidation law or statute of any jurisdiction.
 - v) GA unnecessarily postpones transmitting a premium payment to SBLI to reinstate a lapsed Product.
 - vi) GA knowingly violates state or federal laws or regulations related to finance, insurance, or fiduciary responsibilities.
 - vii) GA intentionally misrepresents or intentionally induces any GA Producer to misrepresent the provisions, benefits, or premiums of any SBLI policy.
 - viii) Without SBLI's prior written consent, GA induces or attempts to induce any SBLI Producer to terminate a Producer contract/appointment with SBLI.
- e) Termination Without Cause. The Agreement may be terminated by either Party without cause upon written notice of termination to the other Party. Unless otherwise stated, the termination will be effective from the date the written notice of termination is received.

- 11) **Insurance Coverage**. GA shall procure and maintain appropriate Errors and Omissions liability insurance ("E&O") coverage in amount of at least \$1,000,000.00. Upon request from SBLI, GA shall provide a certificate of E&O insurance coverage to SBLI. E&O coverage issued pursuant to the National Association of Independent Life Brokerage Agencies Errors and Omissions Insurance Program may satisfy SBLI's Insurance Coverage requirements. GA shall also maintain appropriate levels of Comprehensive General Liability (CGL), Indemnity and/or Cyber Liability coverage as appropriate to GA's activities on behalf of SBLI.

- 12) **Indemnification.** GA shall indemnify and hold harmless SBLI from any losses, damages, claims, judgments, settlements, attorney's fees, expenses, and/or liability arising out of any negligence, gross negligence, malfeasance, errors, or omissions by GA or GA's Producers.
- 13) **Litigation.** GA shall provide prior written notice to SBLI before initiating any litigation relating to this Agreement or with any GA downline Producer, applicant and/or SBLI Product owner, relative to any business transacted hereunder. The Parties acknowledge that injunctive relief to restrain any threatened or actual violation of this Agreement is appropriate and necessary, since there may be no adequate remedy at law to protect SBLI's unique assets and property rights.
- 14) **Governing Law.** This Agreement is signed by SBLI in Woburn, Massachusetts, and all matters arising out of or relating to this Agreement shall be governed by and construed in accordance with the laws of the Commonwealth of Massachusetts, without regard to any conflict of laws provisions.
- 15) **Forum Selection.** All disputes, litigation, proceedings, or other legal actions that arise from or relate to this Agreement or the relationship (collectively, "Actions") shall be exclusively commenced and resolved either in courts located in Middlesex County in Commonwealth of Massachusetts or the United States District Court for the District of Massachusetts, Boston (Eastern) Division (collectively "Massachusetts Courts").

Each Party irrevocably waives, to the fullest extent permitted by applicable law, any claim, defense, or objection it may now or hereinafter have against the laying of venue of any proceeding under this Agreement brought in Massachusetts Courts, including without limitation any assertion that any Action commenced in Massachusetts Courts under this Agreement has been brought in an inconvenient forum. The Parties further agree to the effectiveness of the service of process, summons, notice of document by registered U.S. mail, return receipt requested, addressed to the Party's last known address.

- 16) **SBLI Property Rights; Confidentiality.** GA hereby acknowledges that the Product transactions contemplated by this Agreement, including the contact information, personal information, and financial information of SBLI customers who apply for or purchase Products through GA and/or GA's downline Producers constitute confidential personal information ("Personal Information") and the joint property of SBLI and GA and shall not be transferred, distributed or sold by GA without the express written consent of SBLI. Nothing contained herein shall be construed to prohibit SBLI from communicating with any SBLI customers.

All the SBLI information and materials provided to GA are the property and the intellectual property of SBLI, including without limitation: this Agreement, Product forms, applications, packages and materials, Compensation Schedules, administrative manuals, and any other operations manuals. GA shall not disclose any such information or materials or use them except as may be required to satisfy GA's obligations hereunder.

GA acknowledges and agrees that SBLI customer records, applications and correspondence relative to SBLI Products are confidential Personal Information and the property of SBLI. GA shall protect the confidentiality of all such documents and records. GA shall instruct GA's downline Producers to protect the confidentiality of all such documents and records. Any such material in GA's possession shall be promptly returned to SBLI upon request.

- 17) **Privacy – Information Security Policy.** GA hereby acknowledges the confidential nature of non-public Personal Information regarding existing and prospective SBLI customers including SBLI applicants, Product owners, insureds, annuitants, and beneficiaries. For the purposes of this Agreement, customer Personal Information includes those forms and documents received or maintained by the GA, its officers, employees, and/or GA's downline Producers relating to SBLI Products and any Personal Information about SBLI customers contained therein. GA shall implement and maintain an appropriate and effective Information Security Policy ("ISP"). Said ISP shall consist of information security measures implemented by GA to protect the confidentiality of Personal Information in compliance with all applicable state and federal laws, including 201 CMR 17.00 (Standards for the protection of personal information of residents of Massachusetts). GA hereby represents and warrants that GA shall maintain an ISP with security measures in compliance with all applicable federal and state privacy laws in every state where GA transacts business hereunder.

Except to complete a transaction requested by the customer or for other purposes specifically authorized under the Gramm-Leach-Bliley Privacy Act and related state and federal regulations, GA shall not disseminate, refer, or reveal to any other party, any Personal Information, any non-public information or any SBLI proprietary information during the term of this Agreement or following termination of this Agreement.

All SBLI customer records, applications and correspondence relative to SBLI Products are confidential Personal Information and the property of SBLI. GA shall protect the confidentiality of all such documents and records. GA shall instruct GA's downline Producers to protect the confidentiality of all such documents and records. Any such material in GA's possession shall be promptly returned to SBLI upon SBLI's request.

- 18) **Assignment.** GA may not assign this Agreement, nor may the rights and responsibilities hereunder be assigned, delegated, or assumed without the specific prior written consent of an authorized SBLI officer.
- 19) **Amendment.** This Agreement may be amended by SBLI upon 30 days' advance notice by a written amendment signed by a duly authorized SBLI officer and expresses an intention to amend this Agreement.
- 20) **Entire Agreement.** This Agreement supersedes all prior agreements between the Parties pertaining to GA, SBLI, Products and the payment of Compensation or premiums. If any term or provision of this Agreement shall be found to be void or unenforceable, such

findings shall have no effect upon any other provision of the Agreement, which will be given full force and effect.

- 21) **Waiver.** No forbearance or failure to insist upon prompt or strict performance of any of the terms or conditions of this Agreement shall be construed as a waiver of any rights hereunder.
- 22) **Reservation of Rights.** Notwithstanding any contrary section in this Agreement, SBLI reserves the right to take the following actions without prior notice:
- a) Disapprove any Product application, restrict Product coverage amount, require a higher premium than that applied for and/or rescind or terminate any existing Product when appropriate.
 - b) Discontinue, revise and/or withdraw any Product related forms, Products, product features, riders, endorsements, or addenda in all states and territories without prejudice to its right to continue use of same in any other state or territory.
 - c) Discontinue the issuance or use of any Product related forms, Products, Product features, riders, endorsements or addenda in any territory at any time.
 - d) Modify any Product forms, provisions, features, riders, endorsements, or addenda.
 - e) Modify or amend the conditions or terms under which any Product forms, Products, Product features, riders, endorsements, or addenda may be offered.
 - f) Cease transacting business in any state or geographically defined area.
 - g) Pay different Compensation with respect to new Products.
 - h) Modify or amend Product premium rates.
 - i) Implement, modify, discontinue and/or make exceptions to any GA and/or Producer incentives, promotions, bonuses, awards, benefits, conference credits, or other benefit plans or programs.

Any modifications identified above will not apply to in-force Products or applications already received by SBLI. Any modifications relative to the GA and/or Producer Compensation commissions, incentives, promotions, bonuses, awards, benefits, conference credits or other benefit plans or programs shall not constitute an Amendment of this Agreement.

NOTICES: All notices and other communications required or permitted to be given pursuant to this Agreement must be written and, unless specified otherwise, are considered as properly given or made if delivered to the GA by US Mail overnight delivery, registered or certified mail, or electronic mail.

IN WITNESS WHEREOF, the Parties have signed this Agreement.

("GA")

By:

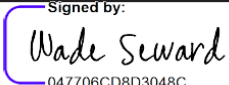
Title:

Date:

Printed Name:

GA Address:

THE SAVINGS BANK MUTUAL LIFE INSURANCE COMPANY OF MASSACHUSETTS

Signed by:
By: 
047706CD8D3048C...

Title: Chief Distribution Officer

Date:

Printed Name: Wade Seward

Company Address: 1 Linscott Road, Woburn, Massachusetts 01801